

2. CROW, ET AL. v. CHILD, 24CV1535**Motion to Compel**

On January 6, 2026, pursuant to Code of Civil Procedure section 2030.290, defendant Barton Memorial Hospital (“defendant”) filed the instant motion to compel (1) plaintiff John Crow’s verified response to Form Interrogatories (Set One); (2) plaintiff John Crow’s verified response to Special Interrogatories (Set One); and (3) plaintiff Janet Crow’s verified response to Form Interrogatories (Set One). Defendant’s motion includes no request for a monetary sanction.

Proof of service attached to the moving papers shows the motion was electronically served upon all parties that same day. On March 13, 2026, defendant filed a notice of non-opposition.

If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order compelling responses. (Code Civ. Proc., § 2030.290, subd. (b); see *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403–404.) Generally, the party who failed to serve a timely response to the discovery request waives “any objection” to the request, “including one based on privilege” or the protection of attorney work product. (Code, Civ. Proc., § 2030.290, subd. (a).)

In this case, defense counsel declares his office electronically served the discovery requests on plaintiffs on September 25, 2025. (Perry Decl., ¶ 2.) Accordingly, plaintiffs’ deadline to serve their verified responses was October 27, 2025 (30 calendar days, extended by two court days for electronic service). (Code Civ. Proc., §§ 1013, subd. (e), 2030.260, subd. (a).) As of January 6, 2026, neither plaintiff had served any verified response. (Perry Decl., ¶ 8.) Therefore, the motion is granted.

TENTATIVE RULING # 2: THE MOTION TO COMPEL IS GRANTED. PLAINTIFF JOHN CROW SHALL SERVE VERIFIED RESPONSES, WITHOUT OBJECTION, TO DEFENDANT BARTON

MEMORIAL HOSPITAL'S FORM INTERROGATORIES (SET ONE) AND SPECIAL INTERROGATORIES (SET ONE) NO LATER THAN APRIL 30, 2026; AND PLAINTIFF JANET CROW SHALL SERVE A VERIFIED RESPONSE, WITHOUT OBJECTION, TO DEFENDANT BARTON MEMORIAL HOSPITAL'S FORM INTERROGATORIES (SET ONE) NO LATER THAN APRIL 30, 2026.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.